

Andhra Pradesh Exhibition of Films on Television Screen through Video Cassette Recorders (Regulation) Rules, 2006

Source: <https://indiankanoon.org/doc/175691284/>

Skip to main content

Legal Document View

Tools for analyzing structure and cite text of judgments

Unlock Advanced Research with

PRISM

AI

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

Know your Kanoon

-

Doc Gen Hub

-

Counter Argument

-

Case Predict AI

-

Talk with IK Doc

-

...

Upgrade to Premium

[Cites

0

, Cited by

0

]

State of Andhra Pradesh - Act

Andhra Pradesh Exhibition of Films on Television Screen through Video Cassette Recorders (Regulation) Rules, 2006

ANDHRA PRADESH

India

Andhra Pradesh Exhibition of Films on Television Screen through Video Cassette Recorders (Regulation) Rules, 2006

Rule

ANDHRA-PRADESH-EXHIBITION-OF-FILMS-ON-TELEVISION-SCREEN-THROUGH-VIDEO-CASSETTE-RECORDERS-REGULATION-RULES-2006 of 2006

Published on 10 October 2006

Commenced on 10 October 2006

[This is the version of this document from 10 October 2006.]

[Note: The original publication document is not available and this content could not be verified.]

Andhra Pradesh Exhibition of Films on Television Screen through Video Cassette Recorders (Regulation) Rules, 2006

Published vide Notification No. G.O. Ms. No. 251, Home (General-A), dated 10.10.2006

Last Updated 24th September, 2019

No. G.O. Ms. No. 251. - In exercise of the powers conferred under Section 20 of the Andhra Pradesh Exhibition of Films on Television Screen through Video Cassette Recorders (Regulation Act, 1993 (Act 12 of 1993) as amended by the Andhra Pradesh Exhibition of films and Television Screen through Video Cassette Recorders (Regulation) Amendment Act, 2005 (Act No. 13 of 2005) and in supersession of the existing provisions applicable to the public exhibition of films

on video in the Andhra Pradesh Cinemas (Regulation) Rules 1970, the Government of Andhra Pradesh hereby makes the following rules, namely:-

Chapter-1 Preliminary

1.

Short title.

- These rules may be called the Andhra Pradesh Exhibition of Films on Television Screen through Video Cassette Recorders (Regulation) Rules, 2006.

2.

Definitions.

- In these rules unless the context otherwise requires:-

1. (a) "Act" means the Andhra Pradesh Exhibition of Television Screen through Video Cassette Recorders (Regulation) Act, 1993.

(b)

"Building" means a building as defined in the A.P. Cinemas (Regulation) Rules, 1970.

(c)

"DVD" means Digital Versatile/ Video Disc;

(d)

"Film" includes cinematograph film or video tape through which any series of visual images recorded on material can be shown as a moving picture.

(e)

"Form" means the form set-out in the schedule to these rules,

(f)

"Licensing authority" means the Commissioner of Police concerned in the twin cities of Hyderabad (Hyderabad and Secunderabad), Cyberabad, Vijayawada and Visakhapatnam and elsewhere the Collectors of the District,

(g)

"Local Authority" means,-

(1)

A Municipal Corporation constituted under any law for the time being in force, or

(2)

A Municipal Council constituted under the A.P. Municipalities Act, 1965.

(3)

A Panchayat constituted under the A.P. Gram Panchayats Act, 1964.

(h)

"Pirated Cassette" means a film or DVD or VCD or any mode of film produced through Multi-System Operation or Cable Television Network which was produced without copyright in relation to a Cinematograph Film or a record embodying any part of sound track associated with the film.

(i)

"Programme" means any television broadcast and includes,-

(i)

exhibition of films, features, dramas, advertisements and serials through video cassette recorders or video cassette players or VCDs or DVDs,

(ii)

any audio or visual or audio-visual live performance or presentation; and the expression "programming service" shall be construed accordingly;

(j)

"Section" means a section of the Act.

(k)

"VCD" means Video Compact Disc;

(l)

"Video Cassette Recorder" means a cinematography for the purpose of giving cinematography exhibition of films recorded on video cassette tape including V.C.Ds and D.V.Ds or any other mode of recording or exhibition.

(m)

"Video library" means a place by what ever name called, where the business of selling, letting on hire, distribution, exchange or putting into circulation in any manner whatsoever, of films for the purpose of exhibition is carried on.

(2)

Words and expressions used in these rules but not defined therein shall have the same meaning assigned to them in the Act.

3. Interpretation of Rules.

- If any doubt arises in respect of interpretation of these rules, otherwise than in connection with the prosecution for an offence, the same shall be referred to the Government whose decision there on shall be final.

4.

Application of rules made under other Acts.

(1)

All rules made from time to time under (1) the Andhra Pradesh (Andhra area) places of Public Resort Act, 1818 (Act 1 of 1818), (2) The Andhra Pradesh Municipalities Act, 1965 (Act VI of 1985), (3) The Hyderabad Municipal Corporation Act, 1955 (A** II of 1956) (4) The Andhra Pradesh (Andhra Area) District Boards Act, 1920 (Act, XTV of 1920) (5) The Andhra Pradesh (Andhra Area) Town Planning Act, 1920 (Act VII of 1920), (6) A.P. Gram Panchayats Act, 1964 (Act II of 1964), (7) The Copyrights Act, 1957 and the Copyright Rules, 1958 (8) The Cable Television Networks (Regulation) Act, 1995 and the Rules made there under (9) The Cinematograph Act, 1952 and the rules made there under (10) The A.P. Cinemas (Regulation) Act, 1955 and A.P. Cinemas (Regulation) Rules 1970, relating to matters referred to in Section 6 of the Act and in force immediately before the publication of this notification in the Andhra Pradesh Gazette, shall so far as may be, apply to the matters afore said.

(2)

All references to a Municipal council or Chairman or executive authority thereof, or the District Board or the president or executive authority to the Panchayat in any rule referred to in sub-rule (1) shall be construed as reference to the licensing authority under the Act for the purposes specified in Section 6 of the Act.

Chapter - 2 Grant of a license:

5.

No objection certificate.

(1)

Any person intending to use any place for exhibition of film on Television Screen through Video Cassette Recorder or use any site for constructing or reconstructing a building for exhibition of film on T.V. Screen through V. C. R. or to install any machinery for the said purpose and to employ electrical power to other mechanical power shall make an application in Form A-I for no objection certificate.

Such application for construction shall be accompanied by:

(a)

A site plan prepared on a separate sheet drawn to scale, showing

(i)

the cardinal points marked there on;

(ii)

the position of the site in relation to any adjacent premises and to the public thoroughfare upon which it abuts: and

(iii)

the surrounding roads and buildings such as schools, hospitals places of worship and the like which exist up to distance of 182 meters of the site.

(b)

Relevant record or certified copiers thereof relating to his ownership and possession of the site, if he himself is the owner thereof, or those relating to his lawful possession of the site if he is not the owner.

(c)

The amount of Fee as may be prescribed by the Government shall be paid in respect of each application and a treasury receipt for the amount of fee paid shall be submitted along with the application referred herein.

(2)

A copy of the application in Form 'A'-I along with the site plan referred to In sub-rule (1) shall be submitted to the local

authority concerned, which shall forward it to the licensing authority together with its objection, if any, to the site and to the installation of machinery equipment.

(3)

A copy of the application shall also be sent to the Deputy Commissioner of Police (Traffic) in the twin cities of Hyderabad (Hyderabad & Secunderabad), Cyberabad, Vijayawada and Visakhapatnam and elsewhere to the concerned Superintendents of Police, who shall remit it to the licensing authority with objections, if any.

6.

Grant or refusal of No Objection Certificate.

- 1.(a) On receipt of objections, if any, the licensing authority shall scrutinize the same, with respect to the compliance of the rules and if found to be defective, he may, after giving the applicant an opportunity of being heard, reject the application.

(b)

If the application is otherwise found proper in all respects and in conformity with all the relevant rules, the licensing authority shall cause a notice in Form A-II, both in English and Telugu to be displayed in the notice board of the licensing authority and the local authority concerned, calling for objections, if any, in writing from the public to be submitted within a period of (15) days, from the date of display of this notice. Any objections filed after this period shall be liable to be rejected summarily.

(c)

After considering the application with due regard to the provisions of Section 5 of the Act and the objection, if any, of the local authority, the police or the public, the licensing authority, may grant a no-objection certificate in Form 'B', or may refuse to grant it. The orders of the licensing authority in granting or refusing to grant a no objection certificate, shall be communicated to the applicant and to the person or persons, if any, who have filed objections before the licensing authority.

(2)

The no-objection certificate shall be valid for a period of one year. If within this period, the on objection certificate is not utilized for obtaining a license in Form 'G', a fresh no objection certificate shall be applied for.

(3)

Any person aggrieved by the order of the licensing authority in granting or refusing to grant a no objection certificate may prefer an appeal to the Government within a period of 30 days.

(4)

Transfer of no objection certificate to the legal heirs:

(i)

On the death of a no-objection certificate during the validity period of the no-objection certificate any of his legal heirs may make an application in Form 'M' to the licensing authority;

(ii)

the application shall be made within a period of three months from the date of the death of the holder of no objection certificate;

(iii)

every application for transfer or assignment of no objection certificate shall be accompanied by a death certificate of the deceased;

(iv)

in case where an application is made by one or more of the legal heirs, the consent letters from all other legal heirs for transfer or assignment of on objection certificate in his or their favour shall be filed;

(v)

where one of the joint holders of a no objection certificate dies, the certificate will be deemed to have lapsed on the date of his death, less any of the legal heirs of the deceased make an application for transfer.

(5)

Transfer of no objection certificate to other persons:

(i)

In case the holder of a no objection certificate desires to transfer or assign the certificate to some other person or persons, a joint application by him and the person or persons shall be made in 'Form-M' to the licensing authority setting

forth the reasons for the proposed transfer or assignment before the period of expiry of validity of the no objection certificate;

The amount of Fee as may be prescribed by the Government shall be paid in respect of each application and a treasury receipt for the amount of fee paid shall be submitted along with the application.

(ii)

the application for transfer on assignment shall be submitted along with the original no objection certificate and sworn affidavits by the proposed transferor and transferees;

(iii)

the provisions of the rules relating to the transfer or assignment in respect of license shall mutatis mutandis apply to the transfer of no objection certificate;

Chapter - 3

7.

Approval of plan of building.

(1)

On receipt of no objection certificate, the applicant shall submit an application for approval of the plan of the building existing or proposed to be constructed along with:-

(a)

complete plans, elevation and sections of the premises in triplicate and of all erections or holdings thereon drawn corrects to a scale of one centimeter to a meter and showing the position of electrical machinery and detailed wiring diagram duly signed by a licensed electrical contractor as prepared by an Engineer holding a degree in civil engineering recognized by the University Grants Commission or by holder of a diploma in civil engineering with experience for a period of not less than ten years in building construction;

(b)

a plan (in single line) of the wiring in duplicate, a copy of which shall also be sent to the Chief Electrical Inspector to Government or an Officer deputed by Chief Electrical inspector to Government i.e. Deputy Electrical Inspector of concerned jurisdiction;

(c)

The application shall comply with the Fire and Life safety provisions of the National Building Code of India, 2005 as amended from time to time.

(2)

While submitting the plan the applicant shall follow the guidelines as given in Appendix 1.

8.

Approval or Refusal of plan of buildings.

- On receipt of the plan in triplicate, the licensing authority, shall after consulting the Executive Engineer (R&B) and the Chief Electrical Inspector to Government approve or refuse to approve the plan of the building. The licensing authority shall send one copy of the approved plan of the building to the concerned local authority. In case the licensing authority refuses approval, the reasons for the same shall be recorded in writing by him.

9.

Electrical and structural soundness certificates.

(a)

The applicant shall notify the Executive (R & B) while starting the construction and on completion of the building, shall obtain a certificate of structural soundness of the building from the Executive Engineer (R & B) which shall be valid for 3 years. The certificate shall be issued in Form-'c'. The Executive Engineer may grant the certificate for any lesser period for reason to be recorded in writing.

(b)

On completion of electrical Installation in the building, the applicant shall obtain a certificate of electrical wiring of the building in Form 'D' from the Chief Electrical Inspector to Government and Fire safety certificates from Director General of Fire Services or an Officer deputed by him.

(c)

In case of Executive Engineer (R & B) refuses to issue the certificate of Structural soundness of the building for the reasons recorded in writing the applicant shall have the right to refer the matter to the Superintending Engineer

concerned whose technical opinion thereon shall be final.

10.

Application for permission.

- Every applicant for obtaining permission shall submit an application under Section 6 to the licensing authority, accompanied by the certificates issued by the Executive Engineer (R&B) and Chief Electrical Inspector and the evidence of having insured the premises.

The licensing authority, after satisfying himself, may issue to the applicant a permission under Section 6 in the Form 'E' or refuse to issue such a permission. The licensing authority may also impose any special condition to be fulfilled in the permission. A copy of the plans and drawings referred to in Rule 7 shall be attached to the permission.

Chapter - 4 Issue of License

11.

Application for license.

(a)

Any person who has been granted permission under Section 6 may apply for a license referred to in subsection (1) of Section 3 for exhibition of cinematography film on television screen through video cassette recorder. The application shall be submitted in Form 'F' in triplicate, before the licensing authority and shall be accompanied by a treasury receipt for payment of fee as may be prescribed by the Government from time to time.

(b)

The licensing authority shall after satisfying itself in regard to the provision of Section 5 and after making such enquiry as he deems fit may grant the license for exhibition of film on television screen through video cassette recorder. The license shall be in form 'G' and shall be subject to such terms and conditions specified therein. The license shall be valid for a period covered by the Chief Electrical Inspector to Government, or an Officer deputy by him, i.e., Deputy Electrical Inspector of concerned jurisdiction, certificate referred to in Rule 9.

(c)

The licensing authority may refuse to grant the license if he finds that the applicant has not complied with the requirements of Section 5.

Provided that before refusing to grant the license, the licensing authority shall give to the applicant, a reasonable opportunity of being heard.

12.

License for keeping Video Library.

(a)

Any person intending to keep video library shall make an application to the licensing authority in Form-'H' for obtaining license under sub-section(I) of Section 4 and shall submit the same in triplicate along with a treasury receipt for payment of a fee as may be prescribed by the Government from time to time.

(b)

On receipt of the application, the licensing authority shall consult the local authority concerned and call for its report. On receipt of the report from local authority and having regard to the public interest referred to in subsection (1) of Section 5 of this Act and after satisfying itself to the provisions of sub-section (2) thereof, the licensing authority may grant a license for keeping a video library in Form 'J' which shall be subject to such terms and conditions as specified therein.

(c)

The licensing authority, on considering the report of the local authority referred to in sub-rule (b) and for reasons to be recorded in writing, may refuse to grant the license:

Provided that before refusing to grant license, the licensing authority shall give to the applicant a reasonable opportunity of being heard.

13.

Renewal of License.

- {1} Every application for renewal of license for exhibition of film on television screen through video cassette recorder and/or for keeping video library, shall be made thirty days before expiry of the license sought to be renewed and it shall be made in 'Form O', accompanied by the treasury receipt for payment of fees as may be prescribed by the Government from time to time and evidence of having insured the place of exhibition film on T.V. screen through VCR or the video library:

Provided that if the application is not made before thirty days provided in sub-rule (2), a late fee as may be prescribed shall be paid and the Challan enclosed to the application for renewal.

(2)

In the case of application for exhibition of film on T.V. screen through video cassette recorder, it shall be accompanied by evidence from Commercial Tax Authorities that there is no tax due under the A.P. Entertainment Act, 1939 (Act X of 1939).

(3)

A copy of the application for renewal of license shall be sent simultaneously to the Chief Electrical Inspector to Government, Executive Engineer (R & B) and the Director-General of Fire Services or an Officer designated by him.

(4)

Certificate of Chief Electrical Inspector:- The Chief Electrical Inspector to Government or an officer deputy by him, i.e. Deputy Electrical Inspector of concerned jurisdiction, on receipt of the copy of the application for renewal as required in sub-rule (3) shall inspect the electrical installation and certify that the installations continues to be maintained according to the rule.

(5)

Renewal of licenses: On receipt of the certification of the Chief Electrical Inspector to Government about Electrical Installation, the licensing authority or an officer authorized by him shall inspect the premises and after being satisfied that all the rules are rules are duly complied with shall renew the license.

(6)

Temporary permit:

(a)

In case, before the date of expiry of the license, the licensing authority, for any reason, does not renew, he shall grant a temporary permit in 'Form K'. But such a permit shall be issued only when the Chief Electrical Inspector or any Officer deputed by him, i.e. Deputy Electrical Inspector of the concerned jurisdiction certificate continues to be remain valid,

(b)

The temporary permit shall be deemed to be license subject to the conditions of the license sought to be renewed, and no fee shall be charged for issue of the same.

(c)

The permit shall be valid for a period of one month from the date of issue and may be renewed for a further period of one month at a time:

Provided that such a permit shall cease to be valid on the licensee receiving the license duly renewed or receiving an order refusing to renew the license in which case, the applicant shall surrender the permit.

(7)

(a)

Structural soundness: For obtaining a renewal of Certificate of Structural Soundness in case of the building, an application shall be made to the Executive Engineer (R & B) at least one month prior to the date of expiry of the period specified in that certificate.

(b)

The Executive Engineer or an officer deputed by him after inspection of the building, shall renew the certificate of structural soundness or refuse to issue such certificate. The provisions of rule shall apply mutatis mutandis to the renewal of such certificate.

(c)

The proceedings of the Executive Engineer (R & B) either issuing or refusing to issue the structural soundness certificate, shall be sent to the licensing authority and a copy thereof shall be sent to the applicant.

14.

Transfer/Assignment of License.

(1)

On the death of licensee, any of his legal heirs, may within a period of six months from the date of his death make an application in form 'L' to the licensing authority for the transfer of the license in his name, along with the death certificate of the deceased and treasury receipt for the payment of transfer fee as may be prescribed by the Government.

In case, the application is made by any of the legal heirs, of the deceased licensee, consent letter from all the other legal

heirs of the deceased for such transfer shall be filed along with the application.

(2)

Where a licensee desires to transfer or assign his license in favour of some other persons, a joint application in writing signed by the licensee and the proposed transferee shall be made to the licensing authority giving all the details required in Form 'L' along with a treasury receipt for payment of the transfer fee, and a copy of the document, if any, executed between the parties showing the reasons for the proposed transfer.

(3)

Calling for objections: The licensing authority shall cause a notice to be displayed on its notice board and that of the local authority concerned about the receipt of the application and such other details as necessary and call for objections, if any, from the public to be filed in writing within (15) days from the date of publication on the notice board. Any objection filed thereafter shall be summarily rejected.

(4)

Approval or rejection of application:

(a)

The licensing authority, after considering the objections, if any, received from the public and considering the previous experience, Eligibility and antecedents of the applicant, shall either approve or refuse to approve the transfer of assignment of license. A copy of the said order shall be communicated to the applicant and to the Person or persons who filed the objection,

(b)

In case of approval of the transfer or assignment of license, the licensing authority shall make an entry in its book and the license after endorsement of transfer or assignment shall be returned to the applicant.

(5)

In case the application for transfer or assignment is rejected, the same shall be communicated to the applicant in writing giving the reasons therefor.

(6)

Any person aggrieved by the order of the licensing authority approving or refusing to approve the application for transfer or assignment of the license may appeal to the Government and the provision of Rule 15 shall apply to such appeal.

Chapter - 5 Appeals

15.

(1)

Any appeal to Government under Section 18 of the Act against the order or decision of the licensing authority, refusing to grant or renew a license, or an order revoking or suspending a license or refusing the application for transfer or assignment of license or no objection certificate, shall be preferred within thirty days from the date of receipt of the order appealed against:

Provided that an appeal may be admitted after the expiry of the thirty days, if the appellant satisfies the Government that he had sufficient cause for not preferring the appeal within the time limit.

(2)

The Memorandum of appeal shall be submitted in triplicate setting forth concisely the grounds of objection to the order appealed against.

(3)

It shall be accompanied by the original or certified copy of the order appealed against.

(4)

lire amount of fee as may be prescribed by the Government shall be paid in respect of each appeal and the Memorandum of appeal shall be accompanied by a treasury receipt for the amount of fee due on the appeal. No court fee stamp need be affixed to the memorandum of appeal.

(5)

The Memorandum of appeal shall be Signed by the appellant or by his authorized agent and presented to the appellate authority in person or by his agent on any working day at any time during the office hours or sent by registered post acknowledgement due. The authorization to the agent should be in writing unless the agent holds a power of attorney.

Chapter - 6 Miscellaneous

16.

(1)

Title to obtain or hold permission or license. - Any person not below the age of twenty years, any company or firm or association of individuals, whether incorporated or not, shall be entitled to obtain or hold any permission or license under the Act.

(2)

Applicability of Electricity Act. - The license shall comply with such of the provisions of the Electricity Act, 2003 and of the rules made there under as are applicable to the premises.

(3)

Premises and equipment to be insured. - Every licensee shall insure the licensed premises the enquirement and the Video Cassettes against the risk of fire so that the licensed place and the video library are run without fire hazards.

(4)

Display of license & Rules. - The rules and license issued under the Act printed in large type together with name and address of the licensee shall be displayed in some conspicuous place at the entrance at a height of not more than 1.25 meters.

(5)

Smoking prohibited. - Smoking shall not be permitted within the place of exhibition of film on television screen through video cassette recorder and in places where video libraries are located.

(6)

Contents of application for license or permission under the Act. - Every application for a license or permission under the Act shall be in writing and shall contain:

(a)

The name of applicant,

(b)

The place at which the exhibition is to be given or video library is to be kept,

(c)

The number of seats to be installed in the case of exhibition of film,

(d)

Such other particulars as may be prescribed.

(7)

Refund of fee. - In case no application is filed after remitting the fee under Rule 5(c) for obtaining no objection certificate, under Rule 11(a) for grant of license, under Rule 12(a) for keeping video library and under Rule 13 for renewal of license, if no appeal is filed, under Rule 15 the entire fee so remitted may be refunded to the applicant. The application for such refund shall however be made by the applicant within one month from the date of remittance.

(8)

Application for duplicate copy of license.

A duplicate copy of license shall be granted on payment of prescribed fee.

(9)

The letter of consent referred to in Section 8 of the Act shall be in Form-'N'.

(10)

The distance between two places where exhibition of film on television, film through Video cassette recorder is made shall be not less than two kilometers. No exhibition of film on T.V. screen through VCR shall be allowed in a place if the distance to the nearest permanent or semi-permanent cinemas, or touring cinema located in the same local area or in an adjacent village Panchayat or town or cities of Hyderabad-Secunderabad, Vijayawada and Visakhapatnam is less than two kilometers.

Appendix - I

Every person who constructs, reconstructs or alters or adds to a building where an exhibition of film on Television screen through Video Cassette Recorder is carried on shall comply with the following requirements:

1. Such construction activity shall be in accordance with the Statutory Development Plan Zoning Regulations and where Zoning Regulations are not in force, in commercial areas/ commercial complexes of height below 15 m.

2. Minimum abutting road width: required 12.2 sq.m

3. Minimum Setbacks to be provided for the building accommodating such activity:

4. Parking requirement: 40% of total built up area in case of Municipal Corporations areas and 30% of total built up area in case of other areas.

5. Requirements as to drainage and sanitary conveniences:

(1)

The ground floor or the lowest floor of the building shall be at such a level as will allow of the effectual drainage of that floor, it shall, ordinarily, be not less than half a meter above the ground or site level.

(2)

Means for the effectual drainage of storm water sullage and sewage from the premises and sufficient and suitable sanitary conveniences for the use of the occupants of the building.

Sl. No.

Plot size(in Sq. Mts)

Maximum Height of Building Permissible (in Mts.)

Building line or Minimum Front Sotback (in (Mts)

Minimum Setbacks on

all other Sides(in Mts)

Abutting Road width (in mts)

12.2 and upto 18

Above 18 and upto 24

Above 24 and upto 30

Above 30

(1)

(2)

(3b)

(3c)

(3d)

(3e)

(4)

1.

2.

3.

4.

5.

500 & up to 750

Above 750 & upto 1000

Above 1000 & upto 1500

Above 1500 & upto 2500

Above 2500

12

Below 15

Below 15

Below 18

Below 18

4.0

4.0

4.0

4.0

4.0

5.0

5.0

5.0

5.0

5.0
6.0
6.0
6.0
6.0
6.0
7.5
7.5
7.5
7.5
7.5
1.0
4.0
5.0
6.0
7.0
(3)

Suitable means of drainage to the building and also sanitary conveniences of such description and design shall be provided as may be recommended by the Executive Engineer (R & B), who has to issue the structural soundness certificate of the building, for the exclusive use of each sex separately and shall cause the same to be maintained in good order and sanitary condition.

6. Fire and life safety requirements. - (1) The floor, roof, ceiling, private boxes, balconies, galleries, tiers, partitions and every room, lobby, corridor and passage intended for the use of the public shall be constructed of fire resisting materials. The specifications prescribed under Group D- Assembly Buildings, as per clause 3, part 4 of National Building Code of India as amended from time to time shall be complied.

(2)

No panelling of walls with wood and other combustible materials for decorative and other purposes in the building shall be permitted:

Provided that in building in which such panelling has already been effected, the combustible materials with which the panelling has been effected shall be treated with fire resistant paints.

7. Doors. - All outside doors for the use of the public shall be made to open outwards and internal doors shall be so fitted as not to obstruct, when open, any gangway, passage, stairway or landing, such doors when open should engage on an automatic spring.

8. Ventilation. - The licensee shall provide sufficient and approved artificial means of ventilation whenever required by the licensing authority. Artificial means of ventilation shall include provision of exhaust fans.

9. Electrical installation not to be altered without approval. - No addition to or alteration of any point of the electrical installation within the premises shall be made without the prior sanction of the licensing authority.

10. Compliance with instructions. - The Chief Electrical Inspector or any officer deputed by him inspecting an installation shall, if he discovers any defect therein, issue written orders to the owner or person in charge for the rectification of the defects through a licensed electrical contractor and prescribe reasonable time within such orders should be carried out.

Appendix II

1. The licensee shall cause. - (1) All windows and other means of ventilation in the building to be maintained in good order.

(2)

Every part of such building or place to be maintained in proper sanitary condition.

(3)

The walls of the buildings to be hot lime washed at least once in every six months or to be painted once in every two years or more often, if so prescribed.

2. Restriction on admission of persons. - (1) The licensing authority shall fix the actual number of persons to be admitted to each class of accommodation provided in the place of exhibition. The number shall be arrived at by calculating at the rate of 20 persons per 10 square meters of floor area, in respect of that portion of the premises which provided with

chairs having backs and arms.

In calculating the floor area under subrule (1) the area of the entrances, the passages, gangways and the stair cases shall be excluded and no part of the premises from which a person can watch the exhibition of films shall be excluded.

Rate of admission to be fixed. - (1) The licensing authority shall fix the actual rates of admission to accommodation provided in the place of exhibition after taking into account the proposals of the licensee, the amenities provided in the place of exhibition, the prevailing rates of admission in similar places of exhibition in similar localities within his jurisdiction and any other relevant factor.

(2)

The rates prescribed for admission in the place of exhibition shall be clearly indicated by means of a board or otherwise.

(3)

The licensing authority may, on application by the licensee, alter the rates of admission if there has been any change in the amenities provided either in that accommodation or generally in the place of exhibition or for any other valid reasons.

Seating accommodation. - The following provisions shall be observed in providing seating accommodation:

(1)

Chairs shall be battened together in complete lengths.

(2)

In all cases, there shall be an intervening space of at least 35 centimeter between the back of one seat and the front of the seat immediately behind measured between perpendiculars.

Provision for electricity: In the premises, sufficient number of approved electric lights fed from an independent source or sources which are automatically switched on in case of failure of main lighting shall be provided in the place of exhibition, gangways, passages and exists.

Provision for fire-extinguishers:

(1)

In the place of exhibition, sufficient number of portable fire-extinguishers of soda acid type and of the ten liter size shall be installed at an adequate height from the ground of the satisfaction of the licensing authority. A record regarding the maintenance of portable extinguishers shall be maintained.

(2)

The licensee shall:

(1)

Once in every three months empty the container of each portable fire-extinguisher provided in the licensed premises, clean its nozzles and working parts, stir the liquids in it and top it up, immediately record the date of having done so on a slip of paper and paste the same on the outside of such container.

(2)

Once in every year discharge each portable fire-extinguisher provided in the licensed premises and recharge it and immediately record the date of such re-charge in durable paint on the external surface of container of the fire-extinguishers.

(3)

Sufficient number of buckets with water shall be provided in the licensed premises. Buckets shall be painted in red with the word "FIRE" printed on them in large block letters in local vernacular.

Appendix - III

1. (a) Every application to the Licensing Authority for the grant or renewal of a licence for public exhibition of films on video under the Act shall be in writing and in Form-G in quadruplicate and shall be accompanied by the treasury receipt for the payment of fees as may be prescribed.

1. (b) application for renewal of licence shall be made three months before the expiry of the licence sought to be renewed.

2. Within fifteen (15) days of receipt of such application, the Licensing Authority shall:

(a)

if the application is not in order, return the same to the application for resubmission within a period of 60 days failing which the application shall be treated as rejected and fresh application shall be made;

(b)

if the application is in order, forward a copy of the application each to the Executive Engineer (R&B), the Electrical

Inspector, the Health Officer AND an Officer from Fire Department asking for their reports and certificates within fifteen days.

(c)

On receipt of the reports and certificates referred to in clause (b) above, if the licensing authority is satisfied that adequate precautions have been taken in the place to provided for the safety of the persons attending exhibitions therein, he shall within ten days from the date of receipt of the above reports and certificates grant or renew a licence a licence in form 'K' with or without adding additional conditions thereto consistent with the provisions of these rules, as he may deem fit in the interest of health and safety of public:

(i)

Provided that if the licensing authority is satisfied that provisions of these rules have not been fulfilled and or that it is not in the interest of the health and safety of the public, he may refuse the grant of the licence applied for and communicate to the applicant the reasons for such refusal.

(ii)

Provided further that clause (b) and (c) do not apply in the case of Video exhibitions provided in the transport vehicles. In the case of transport vehicles the licence may be granted by the licensing authority on the basis of the tax receipts under the Andhra Pradesh Motor Vehicles Taxation Act, 1963, the 'C' certificate and fitness certificate issued by the competent authority under the Motor Vehicles Act, 1988.

3. The Licensing Authority while granting or renewing the licence in Form-K shall fix the maximum number of persons to be admitted at a time and also fix the maximum rates of admission allowed which are liable for taxation under the Andhra Pradesh Entertainment Tax Act, 1939 and the rules made thereunder.

4. Licence may be granted/renewed for a period not exceeding one year.

5. Certificates to be obtained by the Licensing authority:

(i)

The Electrical Inspector or the Officer deputed by him shall issue Electrical and Fire Certificate in Form-D to the effect that the Video apparatus. the Electrical Installation and Fire Extinguishing appliances are suitable and in order and fulfil the requirements of these rules.

(ii)

The Health Officer of the local authority or the District Health Officer where the Local authority has no such Officer, shall issue a health certificate to the effect that the provisions relating to public health, ventilation and the like have been satisfied.

(iii)

The Executive Engineer (R & B) or the Officer deputed by him shall issue a certificate to the effect that the building is fit for the purpose and afford shelter from sun and rain.

(iv)

The certificates referred to above shall be for a period of one year.

6. The distance between the Video screen and the first row seats shall be not less than 10 (ten) feet and no person shall be admitted within such space.

7. The distance between the existing permanent or semi-permanent or temporary cinemas and the Video public exhibitions shall be not less than 800 metres.

8. The distance between one Video center and another video center shall be not less than 100 metres.

9. The public exhibition of films on Video shall be allowed only in commercial areas and in no case such exhibitions shall be allowed in residential areas.

10. The Licensing Authority may in consultation with the Health Officer either require extractors, exhaust fans, ceiling fans or other means of artificial ventilation to be provided.

11. There shall be openings of 1.5 square metres for every ten persons for ventilation purposes to ensure a balanced air supply.

12. One WC and one Urinal for every 50 persons and less for exclusive use of each sex shall be provided.

13. There shall be atleast two door ways fitted with doors to open outwards.

14. Drinking Water shall be provided in such manner and in such quantity as may be specified by the Licensing Authority.

15. The number of persons to be admitted into any part of the auditorium shall be determined by calculating at the rate

of 20 persons per 9 square metres of floor area after excluding the area for entrances, passage, gangways, stage and all places to which the public are not admitted.

16. The chairs shall be battened together in complete lengths.

17.

There shall be an intervening space of atleast 0.35 metres between the back of one seat and front of the seat immediately behind measured between perpendiculars. In the case of establishments for serving coffee, tea, cool drinks and other beverages required tables should also be provided.

18.

There shall be a passage of 0.90 metres in width for every ten rows of seating accommodation.

19.

The gangways shall be not less than 0.90 metres in width and shall be so arranged that no seats shall be more than 10 seats from a gangway.

20.

All the cables, wires used shall be of BIS grade and the wiring shall pass through conduit pipes only.

21.

There shall be a separate circuit controlled by a suitable linked switch for the supply of electricity taken to the Video Hall.

22.

Three pin plugs with the third pin effectively connected to earth shall be used.

23.

Separate circuits shall be provided for lights, fans and other equipment respectively.

24.

An automatic voltage regulator/ stabilizer which can provide an output voltage of $2.30 + 6\%$ shall be installed before the video equipment.

25.

Video films shall not be exhibited in a totally dark room or hall. A dim light about 25 Watts to 40 Watts bulb shall be kept burning throughout the exhibition of films. The bulb shall be placed at right angles to the line of vision of the public.

26.

One portable fire extinguisher of Co. 2 or C.T.C. or D.P.C. type of 1 kg Capacity and one bucket (9 litres.) filled with sand shall be provided,

27.

All the provisions in this Appendix shall be applicable to video Cassette Recorders and Video Cassette Projectors or any other equipment used for public exhibition of films on Video in any place including hotels, restaurants, bars, clubs, transport vehicles etc.;

Provided in the case of public exhibition of films on video in transport vehicles paras 3 and 5 to 27 shall not apply.

Form-A - 1

Application for No Objection Certificate

(See Rule 5(1))

1. Full name of Applicant:

2. Complete address of Applicant:

Village:

Taluk :

District:

3. Status and previous experience of Applicant (specially with reference to exhibition of film on T.V. Screen through VCR).

4. Is the application for grant of permission for construction/reconstruction and alterations)

5. Site where the building is proposed to be constructed/re-constructed or altered for exhibition of films on T.V. screen through VCR.

Survey number/number of plot:

Village :

Taluka :

District :

6. Site plan drawn to be scale of not less than 1 cm to 15 metres covering on area upto 200 metres from the boundaries of the proposed site showing:

(a)

the position of the proposed premises in relation to any adjacent premises and to the public thorough fare upon which the site of premises abuts.

(b)

Thatched huts, if any, in the neighbourhood?

(c)

Nearby schools, educational institutions, places of worships etc. and other premises exhibiting film on T.V, screen through VCR.

(d)

All survey numbers which are required for a direct access to the public road.

7. Area in square meters of the:

(1)

Site

(2)

Proposed building

(3)

Space for parking

(4)

Booking office, shelters & railings

(5)

Urinal & W.C.

8. Suitability of the site for exhibition of film on T.V. screen through VCR.

9. Whether the exhibition of film on TV Screen through VCR is likely to serve the needs of any particular locality?

10. Are you in arrears in payment of taxes and other dues payable by you to the State Government.

11. If the matter is under Appeal, please State so.

Have you ever been convicted of an offence under Section 14 of the Andhra Pradesh Entertainment Tax Act, 1939. If so give details.

12. What is the approximate population of the locality. (Say for around 8 kilometers) from the site.

13. Possession by applicant of other places, if any, and licensed under the Act and if so,

(a)

Whether in the same locality or elsewhere.

(b)

Whether at the time of applying for license or any time previously

(c)

If so, please give details, license No. etc.

14. Whether necessary fee has been paid and the treasury receipt has been furnished along with this application. Please give the challan number, dated of payment and name of the treasury.

15. Whether the site is owned by applicant or taken on lease.

Attach document of ownership/lease deed as the case may be.

Date:

Signature of Applicant

Certified that all the particulars given above in column 1 to 14 are true and correct to the best of my knowledge and belief.

Signature of Applicant.

Form-A - II

Notice calling for objection

(See Rule 6(l)(b))

Whereas Sri.....son of.....aged residing at (address).....has applied to me on.....for the grant of a No Objection Certificate to exhibit film on Television Screen through, Video Cassette Recorder/at a site measuring

about.....(areas) and bearing Survey number.....of village..... of Mandal.....of.....district, belonging to him and in his possession/belonging to and taken by him on lease for a period of.....years from years to.

Notice is hereby given that any person having any objection to the grant of a No Objection Certificate as aforesaid on the grounds of non-compliance by the applicant with any of the provisions of the Andhra Pradesh Exhibition on Television Screen through Video Cassette Recorder (Regulation) Act, 1993 should file his objection in writing with the licensing authority within 15 days of the Publication of this notice.

Any objection filed after this period shall be liable to be summarily rejected.

Place:

Date:

Designation

(signed)

Licensing Authority

Notice. - Where more than one person is the applicant, full details of the all applicants may be given and the form may be suitably altered.

Form - B

(No Objection Certificate)

(Section 6(1)(C))

Under Rule 6 of the Andhra Pradesh Exhibition of Films on Television Screen through Video Cassette Recorder (Regulation) Act 1993, the Collector of/

Commissioner of Police, Hyderabad City hereby grants the certificate that there is no objection to Sri.....son of.....R/o.....exhibiting film on Television Screen through video Cassette Recorder in the land belonging to Sri.....The site where the exhibition of Film is to be located is specified below:

(Please give here the description of the site as in Form A)

The No Objection Certificate is valid for a period of one year from the date here of and if within this period the proposed exhibition is not put up, a fresh No Objection Certificate should be applied for.

The No Objection certificate is also subject to the following special conditions:

Dated.....this.....day of.....

Collector of.....

Seal the.....

Commissioner of Police, Hyderabad

Note. - The No Objection Certificate shall cover not only the Survey number of survey numbers of the plot or plots on which the exhibition is proposed to be located, but also the survey number or survey numbers of the plot or plots which is proposed, to be used as access.

Form - C

Certificate of structural soundness

(See Rule 9(a))

Certificate No.

Date:

I.....Executive Engineer Roads & Buildings..... Certify that the provisions of the A.P. Exhibition of Films on T.V. Screen through Video Cassette Recorders(Regulations) Act 1993, with regard to the construction of cinema building known as "....." situated atconstructed of non-inflammable materials having galvanized zinc or asbestoss sheets for roofing and.....of which Shri.....is the owner/license/managing proprietor and Shri..... is the manager/person in charge and that the building is structurally sound.

Signature of applicant

Form - D

(See Rule 9(b))

Government of Andhra Pradesh Electrical Inspectorate

Office of the Chief Electrical Inspector to Government, Hyderabad.

Certificate No..... Dated.....

Certificate of the Electrical Installation:

Under Rule..... of the Andhra Pradesh Exhibition of Films on Television Screen through Video Cassette

Recorder(Registration) Act. 1993. I certify that the electrical installation of the place of exhibition known as and more particularly.....Described overleaf of which Sri.....is the Managing Proprietor and Sri.....is the Manager or person- in-charge atin order and in accordance with rules.

2. The certificate is valid for period of.....from.....To.....but is liable to revocation within this period.

Signature of Officer

Reverse:

Details of video equipment, electrical and fire extinguishing appliances.

Form - E

Permission under Section 6 of the Andhra Pradesh Exhibition of Films on Television Screen through Video Cassette Recorder (Regulation) Act, 1993.

(See Rule 10)

Permission under Section 6 of the Andhra Pradesh Exhibition of Films on Television Screen through, Video Cassette Recorder (Regulation) Act. 1993 read with Rule 5(1) of the Andhra Pradesh Exhibition of Films on Television Screen through Video Cassette Recorder (Regulation) Rules 2006 is hereby granted in favour of Sri.....To use the place as specified below for the exhibition of film on Television screen through Video Cassette Recorder and to use site for constructing a building thereon for the exhibition of film on Television screen through video Cassette Recorder, to construct or reconstruct any building for such exhibition of film, to install any machinery in the place where such exhibition of films are proposed to be given:

Subject to the terms and conditions specified below:

.....

Licensing Authority

(Strike out what is not necessary)

Here enter the name of the person

Here specify the place.

Here enter the terms and conditions

Form - F

Application for License for Exhibition of Video Film

(See Rule 11 (a))

1. Full name of the Applicant :

2. Complete Address of the Applicant:

Village:

Mandal:

District:

3. Status

4. Details of the premises for which license is applied for:

giving survey no village, mandal and district, wherever applicable)

5. Details of the permission granted by the licensing authority under Section 6 in respect of the premises.

6. Have you been regularly paying taxes and other dues payable to the State Government.

7. Are there any arrears due

8. If the matter is under appeal, give details

Place:

Date:

Signature of Applicant

Certified that all the above particulars are true and correct to the best of My knowledge and belief.

Signature of Applicant

Form - G

License for exhibition of films on Television Screen through Video Cassette Recorder or V.C.Ds or D.V.Ds

(See Rule 6(2))

Name and Address of licensee:

If the licensee is not the owner of the place or building.

The name and address of the owner thereof:

Situation of the place or building:

Area of the place or building in square metres:

Whether the place or building is to be used during

The day or during the night or both.

Date of last inspection by the District Electrical Engineer or Officer authorized by him:

Special conditions, if any, on which the license is granted:

Period for which the license is to be in force:

Fees paid:

(Actual)

number persons permitted in each part of the auditorium:

In the First Class

Persons

In the

Persons

In the

Persons

In the

Persons

Total

Persons

Details of Punishments:

Number and date

of Proceeding of the Licensing Authority

Offence committed

Nature of punishment

(1)

(2)

(3)

Conditions of License:

The license is granted subject to the provisions of the Andhra Pradesh Exhibition of Films on Television Screen through Video Cassette Recorder (Regulation) Act, 1993 and the rules made thereunder. It is also subject to the following conditions. The terms and conditions of the license, may be modified or added to at any time during the currency of the license.

1. This license does not exempt the licensee or his servants or agent from taking out any other license required by or otherwise complying with any other law or rule, by law made thereunder.

2. (a) The licensee shall not exhibit or permit to be exhibited any film other than a film which has been certified as suitable for public exhibition by the authority constituted under Section 4 of the Cinematograph Act, 1952, and which when exhibited display the prescribed mark of that authority, and has not been altered or tampered with in any way since such mark was affixed thereto.

(b)

The licensee shall not exhibit, or permit to be exhibited in the place in respect of which this license is given, to any person who is not an adult any film which has been certified by an authority constituted under Section 4 of the Cinematograph Act, 1952 as suitable for public exhibition restricted to adults.

(c)

The licensee shall not display or cause to be displayed, any photograph picture or poster which depicts or represents or purports to represent a scene or shot which has been excised from any film under the orders of the Central Board of Film Censors of the Central Government.

(d)

There shall be prominently exhibited at each public entrance whenever the premises are open to the public, a notice indicating in tabular form and in clear bold letters and figures.

(i)

the title of each film to be shown on that day, other than trailers and advertisements films.

(ii)
the approximate times of commencement and closing of each such films as indicated below:

Morning Show

Matinee Show

First Show

Second Show

Special Show

(1)

(2)

(3)

(4)

(5)

Show begins at:

Duration in minutes:

Advertisement shorts:

Documentary newsreel:

Main feature:

Interval:

Trailers:

Total duration:

Show ends at approximately:

(iii)

Whether each such film has received an "A" or "U" certificate from the Central Board of Film Censors, and

(iv)

Whether persons below the age of 18 years, other than children below the age of three years will be admitted or not,

(v)

The nature of any certificate received in respect of a film from the Central Board of Film Censors shall clearly be indicated by the letter "U" or "A" In any advertisement of the film displayed at the premises.

(vi)

The licensee shall put up at his cost at prominent places on the premises advertisement boards indicating the penal provisions in the Andhra Pradesh Entertainment Tax Act, 1939. in respect of a person found in the theatre Without a ticket or pass.

2A.

(i) External loud speakers in any exhibition of film as a source of attraction shall be prohibited.

(ii)

The sound inside the theatre shall be kept at the optimum level that is really necessary for comfortable hearing and shall not be too loud or noisy.

3. The licensee shall not exhibit advertisement slides relating to sexual diseases and medicines to correct sexual disorders or purporting to assist the childless in begetting children.

4. The licensee shall not permit obscene or objectionable posters or pictorial publicity material to be displayed in the licensed premises.

5. The grant of this license is subject to any orders that may be passed by the State Government under Section 1 of the Act.

6. The actual rates of payment for admission to the different classes in the licensed premises shall be as indicated below and these rates shall not be altered during currency of this license without an order in writing by the licensing authority permitting such increase.

Class of Accommodation

Actual rates of Admission

I Class

7. The licensing authority and any subordinate duly authorized by him in that behalf and any Police Officer deputed to

keep order during any entertainment in the licensed premises shall, at all times have free access to the said premises in order to see whether the conditions of the license are fulfilled.

8. The licensee shall comply with such directions as the State Government may by general or special order given as to the manner in which approved films shall be exhibited in the course of any performance.

9. The licensee shall also comply with such directions as the licensing authority may give in regard to the exhibition of slides in each performance.

10. No firework shall be used as an adjunct to a place of exhibition.

11. The licensee shall not, without the permission of the licensing authority, assign, sublet or otherwise transfer the license or the licensed premises, nor shall the licensee without permission as aforesaid allow any other person during the period of currency of the license, to exhibit films in the licensed premises.

12. The licensed premises shall not be kept open before.....or after.....on any day without obtaining special permission in writing from the licensing authority in respect of such day.

The hour fixed by the licensing authority with due regard to local conditions (but not earlier than 12 midnight and not later than 1.30 a.m.) should be entered.

13. The licensee shall conduct not more than four shows, within the maximum permitted exhibition time in a day:

Provided that on local festival days, or public holidays, one special show per day over and above the four shows, may be permitted, by the licensing authority (subject to the condition that for conducting) a special show on public holidays or Sundays the licensee shall intimate the licensing authority in advance and in respect of conducting a special show on local festival days the licensee shall obtain prior permission of the licensing authority.

14. The licensee shall ensure that no dispute arising out of ownership or possession of the site, building or equipment is likely to cause any breach of the peace at any time.

15. The license shall provide a suitable cycle stand or the cycles that may reasonably be expected to be brought and arrange for taking care of them. He shall also make necessary arrangements to look after the cars, scooters and motor cycles which are brought to the licensed premises.

16. The licensee shall not use the licensed premises for any purpose other than that for which it has been licensed under the Andhra Pradesh Exhibition of Films on Television Screen through, Video Cassette Recorder, and the rules made there under, which may on merits accord such permission for individual performance and the proceeds thereof are to be devoted solely to philanthropic, religious, charitable, social, political or literary purposes.

17. The licensee shall in respect of each film in his possession, produce when demanded by any Police Officer not below the rank of a Inspector of Police or an Officer authorized by Government in this behalf, a letter of consent from the person who is the first owner of the Copyright of the Cinematograph Film, under section of the Copyright Act, 1957 (Central Act, XIV of 1957) and in each such copyright has been assigned under section of the said Act from the assignee of such copyright.

18. The license shall be subject to cancellation or suspension for the breach of any of these conditions or of the special conditions specified on the reverse.

19. The licensee shall maintain details of all VCDs, DVDs and other Video Cassettes Records for selling, buying, letting on hire and distribution of cassettes.

Dated, this the.....day of.....

Signature and seal of the Commissioner/Collector

Form - H

Application for license for keeping Video Library

(See Rule 12(a))

1. Full name of the applicant:

2. Address of the applicant:

Village: Mandal: District:

3. Give details of your status:

4. (I) Have you been regularly paying taxes and other dues payable by you to the State Government.

(II)

Are you in arrears in respect of any such tax or dues

(III)

If so, is the matter under appeal or otherwise under consideration of the Authorities.

5. Have you any previous experience in the line of keeping video library if so. give full details.
6. Do you possess now or have you ever possessed before any place licensed under the Andhra Pradesh Exhibition of Films on Television Screen through Video Cassette Recorder (Regulation), Act. 1993, is so, Give full details of the places and the periods.
7. Details of the premises for which you require the license for keeping video library. Give survey number if any, village, taluk, district.
8. Do you own the building premises? If so, attach documents relating to ownership along with true copies.
9. Have you taken the building on lease? If so, attach the lease deed with a true copy and also copies of the records to prove ownership of lessor.
10. What is the approximate population of the locality.

Date:

Signature:

Certified that all the above particulars are true to the best of my knowledge

And belief.

Signature:

Form - J

License for keeping a Video Library

(See Rule 12(2))

1. Name and address of licensee :
 2. If the licensee is not the owner of the place or building, the name and address of the owner thereof:
 3. Situation of the place of building:
 4. Area of the place or building in square metres:
 5. Materials of which the roof, side walls, gallery and staircase are made:
 6. Whether the place or building is to be used during the day or during the night or both:
- Period for which the license is to be in force:

Conditions of license:

This license is granted subject to the provisions of the Andhra Pradesh Exhibition of Films on Television Screen through, Video Cassette Recorder (Regulation) Act, 1993 and the rules made thereunder. It is also subject to the following conditions. The terms and conditions of the license, as inserted, may be modified or added to at any time during the currency of the license.

(1)

This license does not exempt the licensee or his servants or agents from taking out any other license required by or otherwise complying with any other law or rules or by-law made thereunder.

(2)

The licensing authority and any subordinate duly authorized by him in that behalf and any police officer deputed to keep order shall at all times have free access to the said premises in order to see whether the conditions of the license are fulfilled.

(3)

The licensee shall in respect of each film V.C. Ds or D. V. Ds in his possession, produce when demanded by any Police Officer not below the rank of a Inspector or an officer authorized by Government in their behalf, a letter of consent from the person who is the first owner of the Copyright of the Cinematograph film V.C.Ds. or D.V.Ds under section of the Copyright Act, 1957 (Central Act XIV of 1957) and in case such copyright has been assigned under section of the said Act from the assignee of such copyright.

(4)

The licensee shall not possess any film V.C.Ds and D.V.Ds other than a film which has been certified as suitable for public exhibition by the authority constituted under section of the Cinematograph Act, 1952 (Central Act. XXXVI of 1952) and which, when exhibited display the prescribed mark of that authority and has not been altered or tampered with in any way since such mark was affixed thereto.

Date.....The day of

Seal of the.....

Commissioner of Police/Collector

Form - K

Temporary License for Exhibition under the Andhra Pradesh Exhibition of Films on Television Screen through Video Cassette Recorder (Regulation) Act, 1993.

(See Rule 13(6)(a))

Whereas Sri..... (full name and address) has applied for renewal of his license and the said license has been retained in my office pending disposal of his application. He is hereby permitted temporarily to exhibit films in (here enter description of premises) under the Andhra Pradesh Exhibition of films on Television Screen through video Cassette Recorder (Regulation) Act, 1993 for a period of one month from the date subject to the provisions of Rule 17 of the Andhra Pradesh Exhibition of Films on Television Screen through Video Cassette Recorder (Regulation) Rules 2006.

Dated, the..... day of

Commissioner of Police/Collector

Form - L

Application for Transfer or Assignment of License in Form "G" and Form "J"

(See Rule 14(1))

Section-I

Licensee

Person to whom the license is to be transferred or assigned:

1. Full name of the applicant:

2. Address of the applicant:

Village: Mandal: District:

3. Age:

4. (a) Status, antecedents and previous experience of the applicants:

Note. - The applicants should furnish herein among other Things particulars of taxes or other dues to Government and whether in respect of any assessment for tax. the matter is under consideration with the authorities of the Government.

(b)

Whether the applicants have not been convicted of an offence under clause (b) or Clause (c) of Section 14 of Andhra Pradesh Entertainment Tax Act, (Andhra Pradesh Act. X of 1989) and if so. particulars of such convictions.

5. Period of a validity of the license.

6. Is the application for transfer or assignment in respect of the place of exhibition/keeping video library.

7. Is the application of transfer or assignment of the license?

(Here give details of the period for which the license is proposed to be transferred or assigned and the consideration fixed for the transaction, etc.)

8. What are the reasons for the proposed transfer or assignment of the license?

Signature of the Applicants.

Section-II

1. Full name of applicant:

2. Address of the applicant:

Village: Mandal: District:

3. Age of the applicant:

4. (a) Status, antecedents and previous experience of the applicant.

Note. - The application should furnish herein among other things particulars of Taxes or other dues to Government and whether in respect of any assessment for Tax. the matter is under consideration with the authorities of the Government.

5. (a) Whether the applicant has not been convicted or an offence under clause

(b)

or clause

(c)

of Section 14 of the Andhra Pradesh Entertainments Tax Act. 1939. and if so, particulars of such convictions.

5. (a) Name of the deceased licensee.

(b)

Date on which the licensee died:

6. (a) Particulars about all the legal heirs to the licensee:

Name of legal heirs:

Age:

Relationship to licensee:

(b)

On what basis the applicant claims to be legal heir of the licensee:

7. is the application for transfer in respect of the place of exhibition/keeping video Library.

8. Period of validity of the license:

9. Has the application obtained the consent of all other legal heirs in writing, for the transfer of the license in his/her name? (Consent statement to be attached).

Signature of applicants.

Form - M

Application for transfer or assignment of No Objection Certificate

(See Rule 6(4)(i))

1. Full name(s) of the applicant(s):

2. Address(es) of the applicant(s):

Village: Mandal: District:

3. Age of the applicant(s):

4. The nexus between the No Objection Certificate holder(s) and the applicant(s)

5. Reasons for the applicant(s) choice by the No Objection Certificate holder:

6. (a) Details of status, antecedents and previous experience, if any. of the applicant(s):

Explanation. - The applicant(s) should furnish herein, among other things, particulars of taxes and other dues to Government and whether in respect of any assessment for tax the matter is under consideration with the authorities of Government.

(b)

Whether the applicant/any of the applicants been convicted or compounded for any offence under clause (b) on clause (c) of Section 14 of the Andhra Pradesh Entertainment Tax Act, 1989 (Andhra Pradesh Act of 1989) and if so, particulars of such conviction compounding:

(c)

The date on which the holder/joint holder of the No Objection Certificate: died.

7. (a) particulars about all the legal heirs to the deceased holder of the No Objection Certificate:

Name of heirs:

Age:

Relationship to the deceased holder of No Objection Certificate:

(b)

On what basis the applicant(s) of the deceased holder/joint holder of the No Objection Certificate:

8. Whether the application is for transfer or inclusion of another person in the capacity of a joint holder of the No Objection Certificate in respect of a place of exhibition.

9. Number and date of proceedings of the licensing authority granting the No Objection Certificate and the period of validity of the No Objection Certificate.

10. Has/have the applicant(s) obtained the consent of all other legal heirs in writing for the transfer of the No Objection Certificate in his/her name? (Consent statement to be attached).

Signature of applicant(s)

Enclosures:

(1)

Original No Objection Certificate:

(2)

Sworn affidavits prescribed in rule:

Form - N

Form of Letter of Consent

(See Rule 16(i))

I,.....son of.....Company/Firm, being the first owner of the Copyright of Cinematograph film under

Section 17 of Copyright Act (Central Act No. 14 of 1957) assignee, claiming through the first Copyright owner of the Cinematograph film do hereby give the consent for the exhibition of a film title as *.....In Video Cassette Recorder or V.C.Ds. or D.V.Ds. for exhibiting it on Television screen through Video Cassette Recorder and/or for keeping of such film in the Video Library.

Signature of the owner/ Assignee of copy right.

*Here enter the name of Cinematograph Film.

Form - O

Application for renewal of license for exhibition of Film on T.V. Screen through V.C.R. and/or for keeping video library.

(See Rule 13(i))

1. Full name of Applicant:

2. Address of the Applicant:

Village: Mandal: District:

3. Status:

4. Details of the premises for which license is applied for

5. Is the application for renewal of exhibition of film on T.V. screen through VCR or for keeping Video Library:

6. Details of the permission granted by licensing authority:

7. Have you been regularly paying taxes and other dues payable to the State Government:

8. Are there any arrears due:

9. If the matter is under appeal, give details:

10. Have you paid the application fee for renewal of license:

11. Is the place of exhibition of Film on T.V. Screen Insured? If, so give details

Place:

Date:

Signature of Applicant

Certified that all the above particulars are true and correct

To the best of my knowledge and belief.

Signature of applicant

N.B. Please enclose evidence of

(1)

No tax due from commercial tax authority.

(2)

Insurance of place of exhibition of Film on T.V. screen, and

(3)

Treasury challan receipt.

Related AI tags, queries and research notes

Translation